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To: The Arizona Supreme Court, Committee on Character and Fitness

The Committee on Character and Fitness is investigating applicant David Nimer's fitness for admission to the practice of law in Arizona. In that pursuit, the Committee engaged Emily T. Bashah, Psy.D. to provide a psychological evaluation of Mr. Nimer. About seven years ago (2018) I conducted a Neuropsychological Evaluation of Mr. Nimer. Dr. Bashah often refers to my report in her "Forensic Psychological Report"; yet the impressions and conclusions Dr. Bashah drew from it are not consistent with my report. I will offer no opinion about Dr. Bashah's report.

The purpose of this note is to assist the Committee on Fitness and Character in distinguishing between the data and the facts presented in my report of my evaluation, and my evaluation as described in Dr. Bashah's report to this Committee.

Dr. Bashah's report included selected partial quotes from my 2018 neuropsychological report which, without context, are misleading. Dr. Bashah does not describe herself as a Clinical Neuropsychologist, nor as having supervised experience interpreting neuropsychological test data. Dr. Bashah's statements show a misunderstanding and consequent misinterpretation of the 2018 neuropsychological test results. Dr. Bashah reinterprets the reporter's impressions, and reaches a contrary conclusion.

For example, Dr. Bashah's report includes this: "Dr. Kerrigan explained that Mr. Nimer's executive function difficulties involved self-regulation, self-management, self-monitoring and task completion." But that isn't what my report says. I named those skill-sets as examples of Executive Functioning. I did name them as not write that Candidate Nimer had problems with any of them. He doesn't.

Candidate Nimer had difficulty on only one of the six involving Executive Functions (EF) tests I gave him. His scores on all the others were solidly average; there were no other EF problems. "These data suggest that he has relatively defined and circumspect difficulties with some EF skills, particularly those involving mental flexibility, while other EF skill areas currently appear to be adequate or stronger."

This is another statement Dr. Bashah attributed to my evaluation: "Mr. Nimer presents with some ongoing neurocognitive concerns consistent with the most recent neuropsychological evaluation by Dr. Kerrigan... which stated that since Mr. Nimer's motor vehicle accident on 02/07/2015, he sustained some deficits in executive functioning..."

Her statement here has two parts. One refers to Candidate Nimer's "ongoing neurocognitive concerns". That is at odds with my 2018 neuropsychological evaluation. In fact, overall Neuropsychological Deficit Score was in the Normal range, and his general neurocognitive abilities were within customary limits.

Candidate Nimer's data did reflect some relative difficulties on measures of attention, which are consistent with his pre-existing diagnosis of ADHD.

Dr. Bashah concluded that Candidate Nimer ought to undergo yet another neuropsychological evaluation; she strongly recommended it as a requirement to enter the Arizona Bar.

I honestly don't know why.

In my own evaluation, I considered it; I always do. When a patient's history and test data indicate that a neuropsychological re-evaluation is medically appropriate and necessary, I routinely include that among

the formal recommendations in my report. In Candidate Nimer's case, there was nothing in his aggregated test data nor among the results of any individual test to lead to that conclusion. None of the data, across three evaluators, provide any objective support for that idea. No objective data support a neuropsychological re-evaluation. That recommendation is completely without merit.

My report did not recommend a follow-up neuropsychological evaluation for Mr. Nimer. That was not an oversight; it was an active decision. In my review of all of the available data, I found nothing whatsoever that supports Dr. Bashah's singular recommendation for another neuropsychological evaluation: not in my own 2018 evaluation: not in Dr. Bradshaw's earlier neuropsychological evaluation: not in any of Dr Bashah's evaluation data.

It is this examiner's professional opinion that a neuropsychological re-evaluation of Candidate Nimer is neither medically necessary nor clinically appropriate; that nothing in the Candidate's medical history, current health status and professional deportment suggest any grounds for concerns about the Candidate's current character or fitness for the Arizona Bar; that pursuing such a requirement would impose unnecessary and unjustifiable burdens of delays of time and finances on the Candidate's application; and that Committee's evaluator was mistaken in representing that conclusion to this Committee.

Sincerely Yours,

A handwritten signature in black ink, appearing to read "J Michael Kerrigan", with a stylized flourish at the end.

J Michael Kerrigan
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